

Andhra Pradesh State Human Rights Commission Chairperson and Members (Salaries, allowances and Other Service Conditions) Rules, 2008

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State of Andhra Pradesh - Act

Andhra Pradesh State Human Rights Commission Chairperson and Members (Salaries, allowances and Other Service Conditions) Rules, 2008

ANDHRA PRADESH

India

Andhra Pradesh State Human Rights Commission Chairperson and Members (Salaries, allowances and Other Service Conditions) Rules, 2008

Rule

ANDHRA-PRADESH-STATE-HUMAN-RIGHTS-COMMISSION-CHAIRPERSON-AND-MEMBERS-SALARIES-ALLOWANCES-AND-OTHER-SERVICE-CONDITIONS-RULES-2008 of 2008

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Andhra Pradesh State Human Rights Commission Chairperson and Members (Salaries, allowances and Other Service Conditions) Rules, 2008

Published vide Notification No. G.O.Ms.No. 51, General Administration (HRC), dated 30.1.2008

Last Updated 29th August, 2019

G.O.Ms.No. 51. - In exercise of the powers conferred under Section 26 read with Section 41 of the Protection of Human Rights Act, 1993 (Central Act, No. 10 of 1994), the Government of Andhra Pradesh hereby makes the following rules:

1.

Short Title and Commencement.

(1)

These rules may be called the Andhra Pradesh State Human Rights Commission Chairperson and Members (Salaries, Allowances and other Conditions) Rules, 2008.

(2)

It shall be deemed to have come into force with effect on and from the twelfth August Two Thousand and Five.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires:-

(a)

"Act" means the Protection of Human Rights Act, 1993, (Central Act 10 of 1994).

(b)

"Chairperson" means the Chairperson of the Commission appointed under Section 22 of the Act:

(c)

"Commission" means the Andhra Pradesh State Human Rights Commission constituted under Section 21 of the Act;

(d)

"Member" means the Member of the Commission appointed under Section 22 of the Act;

(2)

The words and expressions used but not defined in these rules, shall have the same meaning as respectively assigned to them in the Act.

3.

Head Quarters.

- The Head quarters of the Andhra Pradesh Human Rights Commission shall be at Hyderabad.

4.

Salary.

- There shall be paid to :-

(a)

the Chairperson, the salary and allowances equal to the salary and allowances of the Chief Justice of a High Court under High Court Judges (Conditions of Service) Act, 1954, as amended from time to time.

(b)

the Chairperson and Members shall be entitled to draw the above salary in addition to the pension drawn by him for his previous service.

(c)

the Chairperson, shall be entitled to draw all such allowances as are payable to the Chief Justice of High Court.

(d)

the Member shall be paid the salary as payable to the Judge of High Court Judges (Conditions of Service) Act, 1954, as amended from time to time.

(e)

the Member shall be entitled to all such allowances as are paid to the Judge of High Court.

5.

Leave.

(i)

- The Chairperson and Members shall be entitled to leave as follows:-

(a)

Earned Leave at the rate thirty days for each completed Year of Service;

(b)

Half pay leave on Medical Certificate or on private affairs @ twenty days in respect of each completed year of Service. The leave salary for half pay leave shall be equivalent to half of the leave salary admissible during the earned leave;

(c)

Leave on half pay can be commuted to full pay leave at the discretion;

(d)

Extraordinary leave without pay and allowances up to a maximum period of one hundred eighty days in one term of office;

(e)

Casual Leave at the rate of 15days for every year.

(ii)

The Chairperson and Members shall be entitled to avail vacation for a total period of 30 days for every year.

(iii)

Fixation of the above vacation period shall be as may be decided by the Chairperson.

(iv)

If the Chairperson or Member is unable to enjoy full vacation on account of his occupation with the Commission, he shall be entitled to add the un-enjoyed period of vacation to leave account.

(v)

On the expiry of his term in the office of the Commission the Chairperson or Member shall be entitled to receive cash equivalent of leave salary in respect of the Earned Leave standing to his credit provided that the quantum of leave encashed shall not exceed 150 days.

(vi)

The Chairperson or Member shall be entitled to receive Dearness allowance on the leave salary as admissible as per the rules in force on the date of relinquishment of the office in the Commission.

Provided that he shall not be entitled for City Compensatory Allowance of such leave encashed.

(vii)

Governor shall be the authority to sanction leave to the Chairperson and Members the Commission.

6.

Pension.

(a)

The Chairperson shall be entitled to be paid the pension as applicable to the Chief Justice of High Court.

(b)

The Member shall be entitled to be paid the pension as applicable to the Judge of High Court.

7.

Security and Protocol.

(a)

The Chairperson shall be entitled to all such security and protocol as provided to the Chief Justice of High Court;

(b)

The Member shall be entitled for such security and protocol as provided to the Judge of High Court.

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